

May 20, 2026

Janet E. Bender

County Counsel, Yuba County

jbender@yuba.gov

Re: CPRA Request No. 26-245 — Challenge to Insufficient Response

Dear Ms. Bender:

This letter challenges specific deficiencies in the agency's response to CPRA Request No. 26-245, received May 9, 2026. Three responses are legally insufficient and require correction: (1) the application of Penal Code § 832.7 to aggregate, non-individual training records; (2) the overbreadth objection to a fully bounded categorical records request; and (3) the production of a non-responsive document as a substitute for the communications actually requested. A fourth structural deficiency, the agency's failure to provide affirmative written statements when explicitly requested, is addressed for each affected category.

I. THE § 832.7 EXEMPTION DOES NOT APPLY TO AGGREGATE TRAINING RECORDS

The agency responded to the following request item with a citation to Penal Code § 832.7 and Government Code § 7927.705:

Any training completion records, rosters, or certifications documenting which personnel classifications have satisfied the training requirement during the requested period, excluding individual names if YCSO contends those are exempt, but including the number of personnel trained by classification, date range, and training module completed.

The agency's response quoted Penal Code § 832.7 and concluded that, to the extent such records exist, they would be exempt from disclosure. This response misapplies the exemption.

Penal Code § 832.7 protects the personnel records of individual peace officers and custodial officers, including records of investigations and disciplinary proceedings, as well as information obtained from those records. The exemption is designed to protect

individual officers from disclosure of personal employment records, not to shield institutional documentation about how an agency implements its training requirements.

The request expressly excluded individual names and sought only aggregate counts: the number of personnel trained, by classification, by date range, and by module completed. A record showing, for example, that twelve patrol deputies completed ALPR Module 1 in the first quarter of 2024 contains no individual officer's information. There is no person to protect. The record is institutional, not personal.

Under California Supreme Court precedent, CPRA exemptions must be narrowly construed, and the burden is on the agency to demonstrate that a claimed exemption applies to the specific records withheld. *CBS, Inc. v. Block* (1986) 42 Cal. 3d 646, 651-652. The scope of what constitutes a "personnel record" subject to § 832.7 protection is not unlimited. In *Copley Press, Inc. v. Superior Court* (2006) 39 Cal. 4th 1272, the California Supreme Court confirmed that § 832.7 is directed at protecting identifiable individual officers from disclosure of personal employment information, not institutional or compliance records maintained at the agency level. In *Long Beach Police Officers Assn. v. City of Long Beach* (2014) 59 Cal. 4th 59, the Court reaffirmed that § 832.7's protections attach to information about specific named officers and their individual conduct. The § 832.7 exemption does not extend to anonymous aggregate compliance records that contain no identifying information about any individual officer.

Government Code § 7927.705, which the agency also cited, provides an additional layer of protection for peace officer personnel records. It does not expand the scope of what constitutes a personnel record beyond the § 832.7 framework. Aggregate counts by classification and date are not personnel records under either provision.

If the agency contends that a particular personnel classification is sufficiently small that aggregate counts could indirectly identify individual officers, the agency may describe that classification in general terms sufficient to confirm that training occurred without disclosing individual identities. The request is designed to accommodate that concern: the agency may, for example, respond that "sworn patrol personnel" or "supervisory personnel" completed training during a given period without naming individuals or disclosing how many officers fall within a granular sub-classification. That accommodation is built into the request and eliminates any basis for a blanket withholding of all aggregate data.

If the agency contends that even aggregate counts are exempt, it is required under Government Code § 7922.525 and § 7923.010 to provide a written index identifying each withheld record, the specific exemption claimed, and the factual basis for concluding that the exemption applies to that specific record. A blanket citation to § 832.7 does not satisfy this requirement.

The agency is requested to produce aggregate training completion records, broken down by classification, date range, and training module, with individual names redacted if YCSO contends they are exempt. The exemption claimed does not support withholding the non-individual aggregate data.

II. THE OVERBREADTH OBJECTION TO THE CAD/DISPATCH CATEGORY IS LEGALLY INSUFFICIENT

The agency responded to the following request item with an overbreadth objection:

Any records showing what officer-level search documentation, if any, YCSO maintains independently of the Flock platform, including any locally stored logs, dispatch records, CAD entries, or other records that capture the reason for an ALPR search at the individual officer level; or, if no such records exist, a written statement to that effect.

The agency's response stated: 'This request is overly broad. In order for us to assist you, we request that you provide the specific instance, report number, location, date, and time for any CAD information you are requesting.'

This objection is not legally supported for three independent reasons.

First, the request was fully bound. The CPRA does not require a requester to identify specific individual records within a requested category. The request defined a specific category of records, officer-level ALPR search documentation maintained independently of the Flock platform, and applied a defined date range of January 1, 2023 through the date of processing. A categorical request with defined parameters is the standard form of a CPRA request. See *Filarsky v. Superior Court* (2002) 28 Cal.4th 419 (categorical records requests are permissible; the requester's obligation is to define the category, not to pre-identify specific documents within it). Demanding that a requester provide specific report numbers, incident dates, and locations before the agency will process a categorical request inverts the agency's statutory obligation under Government Code § 7922.525 to assist the requester in identifying responsive records.

Second, the request explicitly included an alternative: 'or, if no such records exist, a written statement to that effect.' This alternative was designed to foreclose any overbreadth concern; if no responsive records exist in the category, the agency needs only say so in writing. The agency's response did neither. It neither produced records nor provided the written statement. Instead, it issued a demand for pre-identification of specific instances, which is not a legally sufficient response to either the primary request or the alternative.

Third, the overbreadth objection was applied selectively. The agency responded to every other categorical request in this document, spanning three years of records across five categories, with 'no documents responsive.' If the request scope was genuinely too broad to process, the agency should have raised the same objection across all categories. It did not. The selective application of the overbreadth objection to the single category most directly bearing on whether officer-level documentation exists outside the vendor platform is not consistent with a good-faith application of the CPRA.

Under Government Code § 7922.525, the agency is required to assist requesters in identifying responsive records and to narrow requests in good faith when a request is unclear, rather than rejecting the request outright. The agency made no effort to meet and confer or to identify what subset of the requested category it could process.

The agency is requested to either: (a) produce all records within the defined category for the period January 1, 2023 through the date of processing; or (b) provide a written statement confirming that no such records exist for the requested period.

III. THE AGENCY PRODUCED A NON-RESPONSIVE DOCUMENT IN LIEU OF THE REQUESTED COMMUNICATIONS

Category 2 of the request sought, among other items, internal communications between YCSO and Flock Safety regarding the effect of Flock's December 2025 platform changes on officer-level audit logging, and any internal YCSO assessment of whether the post-change portal configuration satisfies the documentation requirements of ALPR Policy 433.6(e) and Civil Code § 1798.90.52. In response to this category, the agency directed the requester to BOS Agenda Item 263/2025.

BOS Agenda Item 263/2025 (July 22, 2025) is a contract between Yuba County Elections, the County Clerk-Recorder, and Flock Safety for video surveillance of a single ballot drop box at Linda Fire Station No. 3 in Plumas Lake. The customer is the Elections division. The product is the Flock Safety Platform Essentials paired with one Solar Video PTZ camera, a non-ALPR device. The funding source is a federal Help America Vote Act grant (Agreement No. 24G27158). The contract predates Flock's December 2025 platform changes by five months and contains no communications between YCSO and Flock regarding ALPR platform configuration, audit log structure, or officer-level documentation. It has no subject-matter relationship to the records requested.

Producing a non-responsive document as a substitute for responsive communications does not satisfy the agency's CPRA obligations. Under Government Code § 7922.525, the agency is required to provide records that are responsive to the request as framed,

not records that share a vendor name but bear no relationship to the subject matter of the request. If there are no internal communications between YCSO and Flock regarding the December 2025 platform change, the agency must state so. If internal assessments of portal compliance with Policy 433.6(e) or Civil Code § 1798.90.52 are not available, the agency must state so. The production of an unrelated third-party contract does not constitute a substantive response to either request.

The agency is requested to either produce all responsive communications and assessments within Category 2 as originally framed or to provide written confirmation that no such records exist for the requested period.

IV. WRITTEN STATEMENT REQUESTS WERE NOT ANSWERED

Request Categories 3 and 4 each included explicit alternative requests for written statements if no responsive records exist. The agency responded to each with 'no documents responsive.' This response does not satisfy the request.

A written statement is not a document that either exists or does not exist in the agency's files. It is an affirmative response that the agency is capable of providing, regardless of whether underlying records exist. 'No documents responsive' answers a records request. It does not answer a request for a written statement of fact.

Category 3 requested: 'If no such records exist, a written statement confirming that no annual audits were conducted or documented for the period covered by this request.' The agency's response, 'no documents responsive,' leaves unresolved whether annual audits required by ALPR Policy 433.8 were conducted but not documented, or were neither conducted nor documented. That distinction has direct legal significance.

Category 4 requested: 'If no written requests, approvals, or denials exist for the requested period, a written statement confirming that no outside agency requested YCSO Flock Safety ALPR data and that YCSO personnel did not access other agencies' data through the network tiers described above during the period covered by this request.' The agency's response, 'no documents responsive,' similarly fails to answer the affirmative question posed.

The agency is requested to provide written statements as specified in Categories 3 and 4. These are not document requests that can be declined on the ground that no pre-existing records are responsive. They are requests for the agency to provide a factual statement of record.

V. RESPONSE REQUESTED

This letter identifies four categories of legally insufficient responses to CPRA Request No. 26-245. The agency is requested to provide a supplemental response addressing each within ten (10) calendar days of receipt of this letter:

1. Aggregate training completion records as specified in Category 1, with individual names redacted if contended to be exempt, but with aggregate counts by classification, date range, and training module produced.
2. Either production of officer-level search documentation records within the defined category and date range, or a written statement confirming that no such records exist.
3. Either production of all responsive communications and assessments within Category 2 regarding Flock's December 2025 platform changes and YCSO's internal compliance assessment, or a written statement confirming that no such records exist.
4. Written statements as requested in Categories 3 and 4 of the original request.

If the agency declines to supplement its response, this matter will be referred to the California Attorney General's Office and, if necessary, presented to Yuba County Superior Court by petition for writ of mandate under Government Code §§ 7923.000, 7923.100, and 7923.115. The agency's responses to date, including this letter, will be submitted as part of that record.

Respectfully submitted,

Thomas Hammock

May 20, 2026